

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dillon Bezeherntny	Team: Squad #12	CCRB Case #: 202305706	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/06/2023 12:15 PM	Location of Incident: Ericsson Place and Varick Street in Manhattan	18 Mo. SOL 12/6/2024	Precinct: 01		
Date/Time CV Reported Fri, 06/23/2023 2:22 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 06/23/2023 2:22 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Michael Holman	04728	951824	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Michael Holman	Abuse: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman stopped § 87(2)(b)	A . Within NYPD Guidelines
B . PO Michael Holman	Abuse: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman improperly used his body-worn camera.	B . Substantiated
C . PO Michael Holman	Discourtesy: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman spoke discourteously to § 87(2)(b)	C . Unable to Determine
D . PO Michael Holman	Abuse: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman failed to provide § 87(2)(b) with a business card.	D . Substantiated

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's website on June 23, 2023.

At approximately 12:15 PM on June 6, 2023, § 87(2)(b) jaywalked across Ericsson Place at the intersection of Ericsson Place and Varick Street in Manhattan, at which time PO Michael Holman of the 1st Precinct stopped her (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). PO Holman did not activate his Body-Worn Camera (**Allegation B: Abuse of Authority, Substantiated**). § 87(2)(b) refused to stop for PO Holman, who then followed her for several minutes, during which time allegedly referred to her as a “moron,” a “fucking imbecile,” and a “fucking idiot,” and allegedly said that she “deserved to be hit by a car” (**Allegation C: Discourtesy: Unable to Determine**). PO Holman did not offer § 87(2)(b) a business card during this incident (**Allegation D: Abuse of Authority, Substantiated**). § 87(2)(b) was not arrested and did not receive a summons.

§ 87(2)(b) provided the CCRB with a 10-second cell phone video she recorded during her interaction with PO Holman (Board Review 09). The CCRB obtained exterior stationhouse video from the 1st Precinct stationhouse (Board Review 01). The CCRB received negative results for body-worn camera video capturing this incident (Board Review 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman stopped § 87(2)(b)

It is undisputed that § 87(2)(b) crossed Varick Street against the pedestrian do-not-walk sign just prior to her interaction with PO Holman, and that PO Holman attempted to block her path, followed her, and requested her identification.

§ 87(2)(b) provided a verified statement to the CCRB via telephone on July 12, 2023 (Board Review 03). She stated that at approximately 12:15 PM on June 6, 2023, she was walking alone from her shift at § 87(2)(b) in Manhattan, to a different shift at § 87(2)(b) in Manhattan. § 87(2)(b) was running late and in a hurry. At a crosswalk near the Holland Tunnel, across from the 1st Precinct stationhouse, § 87(2)(b) checked that it was safe to cross, and then walked across Varick Street, along Ericsson Place, while the red do-not-walk signal was illuminated. PO Holman, who was standing on the corner of Ericsson Place near Tribeca Park, moved himself in front of § 87(2)(b) and stood in front of her with his arms raised at his sides to block her path and prevent her from walking forward. PO Holman asked § 87(2)(b) for identification, which she did not provide, telling PO Holman that he could write her a summons for jaywalking if he wished but that he could not have her identification. PO Holman said that he was not going to write § 87(2)(b) a summons but continued requesting her identification. § 87(2)(b) then began to cross either West Broadway or Beach Street legally, at which point PO Holman followed her. PO Holman followed § 87(2)(b) for approximately 15 minutes in total.

Video from an exterior surveillance camera at the 1st Precinct stationhouse (camera labeled “1st FL East on Ericsson Pl”) captures portions of this incident (Board Review 01). At the beginning of the pertinent portion of video, PO Holman, a Black male in navy blue uniform, stands on the corner of Ericsson Place and Varick Street. He appears in the central/upper portion of the video frame, standing at the corner of Ericsson Place and Varick Street and facing toward the camera. At 0

minutes 5 seconds, § 87(2)(b) a white female with dark hair and a dark backpack, enters at the bottom right of the video frame, walking away from the camera on the sidewalk of Ericsson Place. § 87(2)(b) approaches the corner, then turns left and begins to enter the crosswalk across Ericsson Place while the do-not-walk red hand symbol for pedestrian traffic across Ericsson Place is illuminated. PO Holman, standing directly across the street from § 87(2)(b) appears to watch § 87(2)(b)'s movements. § 87(2)(b) enters the crosswalk, standing at the front of a parked, marked NYPD vehicle. At 0 minutes 18 seconds, a dark blue SUV approaching in the lane nearest § 87(2)(b) slows and stops as if to let her proceed. § 87(2)(b) moves farther into the crosswalk, in front of the dark blue SUV. Another vehicle, a dark gray SUV, in the lane closest to PO Holman, passes through the intersection just in front of § 87(2)(b). PO Holman waves his right hand, gesturing for § 87(2)(b) to return to the near side of Ericsson Place. § 87(2)(b) continues across Ericsson Place, toward PO Holman, who moves in front of her and blocks her path. § 87(2)(b) stops momentarily, but then attempts to move past PO Holman, first to the left, then to the right, and finally moving past him to the left. PO Holman follows § 87(2)(b) closely on her right side. After a few steps, § 87(2)(b) stops, though the camera's view is partially obscured by a fence. At 0 minutes 36 seconds, § 87(2)(b) once again tries to walk away. PO Holman takes a step to his right as he faces § 87(2)(b) blocking her forward movement. After a brief pause, § 87(2)(b) tries to walk to her right, at which time PO Holman steps to his left to obstruct § 87(2)(b)'s path again. § 87(2)(b) then tries to walk towards her left, at which point PO Holman takes a step to block her path again. § 87(2)(b) then turns and approaches the crosswalk across Varick Street. PO Holman follows her. As § 87(2)(b) crosses Varick Street in the crosswalk, the do-not-walk red hand symbol is illuminated. § 87(2)(b) having crossed Varick Street, continues along Ericsson Place at a moderate walking pace. At 1 minute 8 seconds, § 87(2)(b) stops walking and turns around. PO Holman, having followed across Varick Street, approaches her. They stand close to one another until 1 minute 32 seconds, at which point § 87(2)(b) continues to walk away along Ericsson Place, away from the intersection of Ericsson Place and Varick Street. PO Holman follows her but the two are obstructed by cars parked at the curb. At 1 minute 42 seconds, § 87(2)(b) briefly emerges from behind the parked vehicles and a tree, continuing along Ericsson Place. Shortly thereafter, PO Holman follows her. Both then go out of sight. Neither is visible for several minutes. At 5 minutes 47 seconds, PO Holman returns into view alone, walking toward the stationhouse along Ericsson Place.

PO Holman provided a statement at the CCRB on September 18, 2023 (Board Review 04). He stated on the date of this incident that he was working an administrative assignment as RMP coordinator, wherein he was responsible for the condition and maintenance of the command's vehicles. At approximately 12:15 PM, PO Holman stood on the northwest corner of Varick Street and Ericsson Place, waiting for the red pedestrian light to change so that he could cross Ericsson Place and return to the 1st Precinct stationhouse. § 87(2)(b) began crossing Ericsson Place toward PO Holman, against the do-not-walk sign. As § 87(2)(b) was crossing the street, PO Holman heard a vehicle honk and then watched the vehicle, in the far lane, brake quickly to stop before reaching § 87(2)(b). The vehicle stopped fully, allowing § 87(2)(b) to enter the crosswalk in front of it. Then, a second vehicle in the lane closer to PO Holman, traveling at a high rate of speed, approached. PO Holman attempted to alert § 87(2)(b) by repeatedly saying, "Ma'am," but § 87(2)(b) was using her phone and looking downward. The second vehicle, which was traveling at a high rate of speed, honked its horn at § 87(2)(b) and drove past. § 87(2)(b) then proceeded through the crosswalk to the corner where PO Holman was standing. PO Holman continued trying to get § 87(2)(b)'s attention, repeatedly telling § 87(2)(b) in sum and substance, "Ma'am, you almost got into an accident. You almost got yourself hurt." § 87(2)(b) told PO Holman that she was late for work and walked away from him. According to PO Holman, the ensuing interaction did not constitute a stop. In his CCRB interview, PO Holman denied blocking § 87(2)(b)'s path as she was attempting to walk away. However, PO Holman acknowledged that as § 87(2)(b) walked away, he followed her, asked her for identification, and informed her that she could receive a summons for jaywalking. § 87(2)(b) never

alleged that PO Holman warned her about a summons.) Nonetheless, PO Holman maintained that this was not a stop and that § 87(2)(b) was free to leave throughout the entirety of this encounter.

As noted, PO Holman did not ultimately issue any summons to § 87(2)(b)

In *People v. De Bour*, 40 N.Y.2d 210 (1976) (Board Review 05), the Court held that where a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor, an officer may forcibly stop and detain that person. The Court in *De Bour* defined a stop as any significant interruption with an individual's liberty of movement. Further, a police officer may arrest and take into custody a person when the officer has probable cause to believe that person has committed a crime or offense in the officer's presence. The Court in *People v. Martinez*, 80 N.Y.2d 444 (1992), citing to *De Bour*, notes that the infringement on an individual's freedom of movement from officers pursuing said individual who, for whatever reason, is fleeing to avoid police contact, is akin to that of a forcible stop and therefore also requires reasonable suspicion that a crime was, is being, or will be committed (Board Review 06).

New York State Vehicle and Traffic Law section 1112 requires that pedestrians heed "Walk" and "Do not walk" signs, as well as symbols of a walking person or upraised hand (Board Review 07).

§ 87(2)(g)

[REDACTED]

As such, it is recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation (B) Abuse of Authority: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman improperly used his body-worn camera.

Allegation (D) Abuse of Authority: On June 06, 2023, in the vicinity of Ericsson Place and Varick Street in Manhattan, Police Officer Michael Holman failed to provide § 87(2)(b) with a business card.

The CCRB received negative results for BWC video capturing this incident (Board Review 02). Additionally, it is undisputed that PO Holman did not provide a business card to § 87(2)(b)

§ 87(2)(b) (Board Review 03) stated that at no point during this interaction did PO Holman provide her with a business card. Additionally, she stated that PO Holman did not appear to be wearing a body-worn camera.

As noted, § 87(2)(b) provided the CCRB with a 10-second cell phone video she recorded during her interaction with PO Holman (Board Review 09). In the video, § 87(2)(b) faces PO Holman, and at 7 seconds, the camera records PO Holman's name plate and shield number. § 87(2)(b) says aloud, "Thank you so much Officer Holman."

In § 87(2)(b)'s initial CCRB complaint, she provided both PO Holman's name and his shield number, 4728.

PO Holman (Board Review 04) stated that he was assigned a body-worn camera at the time of this incident but was not wearing his body-worn camera because he was assigned as the RMP Coordinator, an administrative post, which he believed meant he was not obligated to wear his body-worn camera. Similarly, PO Holman was not carrying business cards on his person because he did not believe that was required for his administrative assignment. PO Holman stated that § 87(2)(b) asked him for a business card. Because PO Holman did not have a business card to give § 87(2)(b) he showed § 87(2)(b) his name and shield, which she recorded on her cell phone. PO Holman could not recall if he provided his command to § 87(2)(b). PO Holman stated that he did not believe this interaction required that he provide a business card because this was not a stop.

NYPD Patrol Guide Procedure 212-123 notes that uniformed members of the service who are assigned a body-worn camera must retrieve their assigned BWC from its docking station prior to roll call, ensure that it is working properly, and affix it to their person (Board Review 08). PG 212-123 notes that officers must activate their BWC prior to engaging in any police action, which the Department defines as any police service, law enforcement, or investigative activity conducted in furtherance of official duties, including responding to calls for service, addressing quality of life conditions, handling pick-up assignments, and any self-initiated investigative or enforcement actions such as witness canvasses, vehicle stops, and investigative encounters. PG 212-123 includes no specific provision for officers assigned as RMP Coordinator. While PG 212-123 notes that performance of administrative duties or non-enforcement functions, routine activities with Department facilities, and Departmental meetings or training are not considered police actions, it does not specify that an officer assigned to an administrative assignment is not required to wear his or her body-worn camera during his or her tour. In fact, PG 212-123 specifically notes that officers performing duty as desk officers, telephone switchboard operators, and stationhouse security are required to wear their BWC while performing duty.

NYPD Administrative Guide procedure 304-11 establishes that uniformed members of the service must carry an appropriate amount of pre-printed Right to Know Act business cards and an appropriate amount of generic Right to Know Act business cards if their supply of pre-printed business cards becomes depleted (Board Review 10). AG 304-11 dictates that officers offer a business card at the conclusion of law enforcement activities, including a stop where an officer has individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (i.e., physical resistance, flight, imminent danger of physical injury or damage to property, or other factors that make such procedure impractical). Additionally, AG 304-11 notes that officers must provide business cards, as appropriate, at the request of members of the public. Lastly, AG 304-11 states that an officer must allow a member of the public ample time to write down the officer's identifying information if the officer's supply of generic right to know business cards becomes depleted. AG 304-11 makes no exception for officers assigned to administrative functions, and makes exceptions only for officers acting in an undercover capacity and officers operating in operational support of undercover officers or confidential informants, who are not required to carry business cards.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **Substantiated**.

AG 304-11 requires that uniformed members of the service carry pre-printed Right to Know Act business cards, and, or if that supply is depleted, an appropriate amount of generic Right to Know Act business cards. Further, an officer must provide a business card at the conclusion of a stop. If the officer's supply of all business cards is depleted, the officer must allow a civilian ample time to write down the officer's identifying information. § 87(2)(g)

it is recommended that **Allegation D** be closed as **Substantiated**.

Allegation (C) Discourtesy: Police Officer Michael Holman spoke discourteously to § 87(2)(b).

§ 87(2)(b) (Board Review 03) stated that after she had ignored PO Holman for an unspecified period of time, he began to grow upset and used profanity toward her, calling her a "moron," a "fucking imbecile," and a "fucking idiot," and saying that that she deserved to be hit by a car.

PO Holman (Board Review 04) stated that he did not recall if he called § 87(2)(b) a moron. PO Holman stated that he did not call § 87(2)(b) a "fucking imbecile." PO Holman denied saying to § 87(2)(b) that "[her] parents raised a fucking idiot." PO Holman denied ever telling § 87(2)(b) that "[she] deserved to be hit by a car." PO Holman stated that he did not use any profanity during this incident. PO Holman noted that these allegations did not refresh his independent recollection of any conversation between himself and § 87(2)(b). Reviewing stationhouse video did not refresh PO Holman's independent recollection of any conversation he had with § 87(2)(b).

§ 87(2)(b)'s cell phone video (Board Review 09), recorded toward the end of the incident, is 10 seconds long and does not capture any of the alleged discourtesies.

As noted, this incident was not recorded by body-worn camera. The stationhouse surveillance video of the incident does not include audio and is recorded from too far away to identify visually any verbal statements made during this incident. The only audio recording of this incident is the 10-second cell phone video recorded by § 87(2)(b) which does not capture any of the alleged

discourteous remarks. PO Holman did not recall or denied making each of the alleged remarks in question here. § 87(2)(g)

As such, it is recommended that **Allegation C** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 12).
- PO Holman has been a member of service for 11 years and has been a subject in two other CCRB complaints and two other allegations, none of which were substantiated (Board Review 13). § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 25, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 12

Investigator:	Dillon Bezehertny	Investigator Bezehertny	11/15/2023
	Signature	Print Title & Name	Date

Squad Leader:	Samuel Ross	IM Samuel Ross	08/20/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date